European Case Law Identifier

Why and How?

Warsaw, 30 September 2011

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EU Council Working Party on e-Justice and e-Law

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Topics

- The need for inter-European case law search
- The need for a unique identifier and uniform metadata
- Work at the level of the EU
- Main elements of the EU Council Conclusions.

The need for Cross-border Access to National Case Law

- Judges: to play their role in the European legal system
- Lawyers and citizens: cross-border procedures in an interdependent Europe
- Legal scholars and policymakers: comparative law studies.

Recent initiatives

DEC.NAT - NATIONAL DECISIONS

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Search

This is a full text search.
The beginning of a word is enough, there must be a space between two words and unnecessary words can be omitted. Example : "origin goods" for "origin of the goods".

Date of the decision

until:

For an interval of dates click "until"

Name of parties or registration number

Examples : Smith, Smith John, X ZR 134/00

Title (name of the court, type of decision, ...)

Examples : Cour de cassation, Raad van State, Landesarbeitsgericht

National provision

Examples : Loi 29/07/1991, Decreto legge 14/09/1993, Nomos 3614/1928

State in which the decision has been given

Click in the list

Language of the original decision

Click in the list

Treaty concerned by the decision

Click in the list

Provision of Community law

(type of document)

Examples : EEC Treaty 177, Regulation 804/68, Directive 76/207

JURIFAST - FAST INFORMATION SYSTEM

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	State and jurisdiction	Date
Detail	Czech Republic - Nejvyšší správní soud	09/10/2007
24/11/2008 21:33	**Subject**	
	Value added tax ("VAT") - burden of proof in VAT deduction proceedings - evidence of the relevant circumstances – satisfactory manner – missing suppliers	

	State and jurisdiction	Date
Detail	France - Conseil d'Etat	03/10/2008
24/11/2008 17:05	**Subject**	
	Communautés européennes – Règles applicables – Marchés publics – Règlement (CE) n° 1564/2005 – Directives 2004/17/CE et 2004/18/CE Marchés et contrats administratifs – Règles de procédure contentieuse spéciales – Référés précontractuels	

	State and jurisdiction	Date
Detail	France - Conseil d'Etat	30/11/2007
24/11/2008 16:59	**Subject**	
	Taxe sur la valeur ajoutée – Champ d'application – Arrhes versées par les clients et conservées en cas de dédit – Prestations de services – Indemnités de résiliation non taxables – Article 2§1 de la sixième directive.	

Search

National decision

- [x] Preliminary question
- [x] Without preliminary reference

State

Date

- [ ] until :

Words of the subject

Community law

Type of provision

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Words of the title of the provision

Clear search

Results

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NETWORK OF THE PRESIDENTS OF THE SUPREME JUDICIAL COURTS OF THE EUROPEAN UNION

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Search page

About the Portal

The meta-search engine of National Case Law was created by the Network of the Presidents of the European Supreme Courts. It has been released in April 2007 and allows to simultaneously query several search engines.

Search Instructions

- Make sure you are entering your search words with the **right language.**
- The language can be changed at the bottom of the page.
- **Use the quotes,** the meta-search engine is still in development stage.
- So every term has to be entered between quotes e.g. "torture" and "kidnapping".
- Research Assistance

Search

The current search language is English

From day month year

To day month year

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Access to

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- by topic

About Case Law

CASE LAW

Case Law - Search Result for " Crime . " ; **9 found**

Sort by by title asc desc

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Belgium / Hof van Beroep van Antwerpen - Dec. 31.01.2008

Inventory No.	CASE 372 1
Country	Belgium
Year	2008
Abstract	Key facts of the case: On 11.02.2003, day of the Islamic feast of sacrifice, five members of a Turkish family were involved in a street incident. They were taken to the Police station and brutalised by the Chief Police Inspector of ...

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Belgium / Hof van Cassatie / Cour de cassation - Ref. N-20080527-12 P.08.0402.N

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List of keywords ?

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BRI - General aspects

Level 2:

I

(Acts whose publication is obligatory)

COUNCIL REGULATION (EC) No 1/2003
of 16 December 2002
on the implementation of the rules on competition laid down in Articles 81 and 82 of the Treaty

(Text with EEA relevance)

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty establishing the European Community, and in particular Article 83 thereof,

Having regard to the proposal from the Commission [1],

Having regard to the opinion of the European Parliament [2],

Having regard to the opinion of the European Economic and Social Committee [3],

Article 15

Cooperation with national courts

1. In proceedings for the application of Article 81 or Article 82 of the Treaty, courts of the Member States may ask the Commission to transmit to them information in its possession or its opinion on questions concerning the application of the Community competition rules.

2. Member States shall forward to the Commission a copy of any written judgment of national courts deciding on the application of Article 81 or Article 82 of the Treaty. Such copy shall be forwarded without delay after the full written judgment is notified to the parties.

3. Competition authorities of the Member States, acting on their own initiative, may submit written observations to the national courts of their Member State on issues relating to the application of Article 81 or Article 82 of the Treaty. With the permission of the court in question, they may also submit oral observations to the national courts of their Member State. Where the coherent application of Article 81 or Article 82 of the Treaty so requires, the Commission, acting on its own initiative, may submit written observations to courts of the Member States. With the permission of the court in question, it may also make oral observations.

For the purpose of the preparation of their observations only, the competition authorities of the Member States and the Commission may request the relevant court of the Member State to transmit or ensure the transmission to them of any documents necessary for the assessment of the case.

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National Judgments

Cooperation with national courts

Application of EC competition rules by national courts

The following report is a compilation of the summaries prepared by the Member States annually of the judgments rendered by their national courts involving the application of Articles 101 and 102 of the Treaty of the Functioning of the European Union (TFEU) (formerly articles 81 and 82 EC).

Overview of the application of the EC competition rules by national courts in 2006

National Court Cases Database (Articles 101 & 102 of the TFEU)

Article 15(2) of Regulation 1/2003 requires Member States to forward to the Commission a copy of any written judgment of national Courts deciding on whether Articles 101 or 102 of the Treaty are applicable. These judgments must be sent "without delay after the full written judgment is notified to the parties".

The non-confidential versions of these judgments are published in this database as a valuable source of case practice, as well as providing a useful overview of national courts activities as EC competition law enforcers. You will find judgments in the original language, classified according to the Member State of origin. Within every Member State, the judgments are in a chronological order. Further below you will also find the latest updates to this database.

If you are aware of any national judgment applying Articles 101 and 102 TFEU which is not mentioned on this website, please contact us

Judgments of the European Court of Justice and the Court of First Instance on the application of the EU competition rules can be consulted here

here

Austria	Estonia	Ireland	Malta	Slovakia
Belgium	Finland	Italy	The Netherlands	Slovenia
Bulgaria	France	Latvia	Poland	Spain
Cyprus	Germany	Lithuania	Portugal	Sweden
Czech Republic	Greece	Luxembourg	Romania	United Kingdom
Denmark	Hungary			

What´s new?

Publication date	Member state	Judgment date	Reference
08.08.2011	France	12.07.2011	806 FS-P+B
08.08.2011	France	30.06.2011	2010/12049
04.08.2011	Spain	11.04.2011	124/2011
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19.07.2011	Spain	31.03.2011	202/2011
13.05.2011	Germany	31.03.2011	88 O (Kart.) 49/10
26.07.2011	Germany	30.03.2011	KZR 6/09
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13.05.2011	Spain	21.02.2011	394/08
16.05.2011	Spain	21.02.2011	38/2011
16.05.2011	Spain	18.02.2011	74/2011
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13.01.2011	Germany	21.12.2010	2/6 O 545/08
26.07.2011	Germany	07.12.2010	KZR 71/08

National courts cases - Netherlands

[2010] [2007]

2010

Judgment date:	06.07.2010
Court name:	Gerechtshof
Court town:	GRAVENHAGE
Reference number:	200.023.471/01
Parties:	FOKA B.V. / LOEWE
Type of proceeding:	injunction (e.g. claims for payment or contractual obligations)
Sector:	Consumer products
Decision:	Not available

2007

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Recent cases

Recent judgments delivered by the courts, which are new in Caselex (**more**)

CASELEX:TE:2008:3 CLICK HERE TO VIEW CASE 200

EMPLOYMENT LAW - transfer of undertakings, equal treatment in employment and occupation, equal pay, acquired rig equal pay for men and women

Pursuant to Section 1(3) of the Equal Pay (Northern Ireland) Act 1979, which corresponded to Article 141 EC, in an eq claim, the onus of establishing that there was a genuine material fact that gave rise to a variation in pay that was not on the difference of sex was on the employer. Further, the length of time that a pay discrepancy had endured because particular factor was not irrelevant to the issue of whether that factor continued to be a genuine material factor.

CASELEX:EN:2008:34 CLICK HERE TO VIEW CASE 200

CONSUMER PROTECTION LAW - consumer disputes, consumer contracts, unfair terms in consumer contracts, genera and conditions, procedures, individual legal actions, applicability, interpretation most favourable to consumer, compete

Pursuant to English legislation that implemented Directive 93/13/EEC, an arbitration clause in a builder's standard cont was not binding on the consumer. The clause caused a significant imbalance in the parties' rights and obligations unde contract, to the detriment of the consumer. It was likely that if the clause and its effect were drawn to the consumer's attention at the time of signing the contract, the consumer would have been surprised by it and objected to its inclusio

CASELEX:EU:2008:17 CLICK HERE TO VIEW CASE 200

ICT AND MEDIA LAW - european administrative law, electronic communications, universal access, obligations on opera physical infrastructure, electronic communication networks, electronic communications services, associated facilities, p network, obligation to provide access to, and use of, specific network facilities, regulatory controls, unde

The Republic of Lithuania failed to fulfil its obligations under Article 26(3) of Directive 2002/22/EC, as it did not ensure practice that, to the extent technically feasible, emergency services were given location information of all callers to the European emergency call number '112' when public telephone networks were used. The failure to acquire or adapt th

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Case No: QBCMI 1999/0963A3

IN THE SUPREME COURT OF JUDICATURE
COURT OF APPEAL (CIVIL DIVISION)

JUDGMENT OF THE COURT (Second Chamber)

4 March 2010 (*)

(Right to family reunification – Directive 2003/86/EC – Concept of 'recourse to the social assistance system' – Concept of 'family reunification' – Family formation)

In Case C-578/08,

REFERENCE for a preliminary ruling under Articles 68 EC and 234 EC from the Raad van State (Netherlands), made by decision of 23 December 2008, received at the Court on 29 December 2008, in the proceedings

Rhimou Chakroun

v

Minister van Buitenlandse Zaken,

THE COURT (Second Chamber),

composed of J.N. Cunha Rodrigues, President of the Chamber, A. Rosas (Rapporteur), U. Lõhmus, A. Ó Caoimh and A. Arabadjiev, Judges,

Advocate General: E. Sharpston,

Registrar: M. Ferreira, Principal Administrator,

having regard to the written procedure and further to the hearing on 21 October 2009,

after considering the observations submitted on behalf of:

– Mrs Chakroun, by R. Veerkamp, advocaat,

– the Netherlands Government, by C.M. Wissels and Y. de Vries, acting as Agents,

– the Greek Government, by T. Papadopoulou, G. Kanellopoulos and Z. Chatzipavlou, acting as Agents,

– the Commission of the European Communities, by M. Condou-Durande and R. Troosters, acting as Agents,

after hearing the Opinion of the Advocate General at the sitting on 10 December 2009,

gives the following

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OPINION OF ADVOCATE GENERAL

Sharpston

delivered on 10 December 2009 (1)

Case C-578/08

Rhimou Chakroun

v

Minister van Buitenlandse Zaken

(Reference for a preliminary ruling from the Raad van State (Netherlands))

(Right to family reunification Meaning of 'recourse to the social assistance system' Relevance of date of family relationship)

merits. The officer notes the sub-committee's opinion on the removal of the conditions and expresses his own opinion that the conditions cannot be sustained. He sets out proposed replacement conditions. These, which were accepted by the committee, are comprehensive and amongst other things place a limit on the number of aircraft movements, the number of people who can be employed at the site, a limit on flying training facilities, a requirement for the provision of mufflers or silencers, a limit on hours of operation and a requirement for a new landscaping scheme.

Ground 1

15. The first ground arise because of a past difference of opinion as to the validity of the reverter condition. The question of the validity of conditions attached to planning permissions will sometimes be a difficult one (Newbury District Council v Secretary of State for the Environment [1981] A C 578). BAe had received advice from leading counsel that the condition was of dubious legality. The respondents, having also obtained advice from leading counsel, took a contrary view. It is now common ground that the condition was valid. The respondents contend that the decision to remove the condition was unlawful because the Council were invited by their Planning Officer to make a decision on the basis that the validity of the condition was in doubt.

16. The respondents' point rests primarily upon the contents of a single, though important, paragraph in that part of the Planning Officer's report headed "Conclusions":

> "Given all the information set out above, having particular regard to the representations received, taking into account the long history of employment use on the site, the development plan policies and the legal concerns regarding the conditions, it is concluded that the retention of these two specific conditions cannot be sustained."

17. The respondents have a procedural difficulty in that the judge made no finding on this issue. He merely found that the condition was lawful, a finding which, it is accepted on behalf of the respondents, takes them nowhere. There is nothing to suggest that, in failing to deal with the point, the judge was under the impression that it operated by concession. If there is a point, it is in the Council having regard to an immaterial consideration, an issue not considered by the judge. The respondents' notice was silent on the point. In the course of the hearing before this court application was made to amend the respondents' notice to include the submission now made. Notwithstanding the lateness of the application, permission was granted. I was clear that the appellants were alert to the point and had made submissions on it.

18. The second part of the respondents' case on this ground is that, although the submissions of Mr Macleod QC fo the Council before this court are to a different effect, his skeleton argument before the judge was made on the basis that the Council, in making its decision, had taken into account doubts about the validity of the reverter condition. That is a strong indication, it is submitted, of the Council's position and that the committee members had taken the doubt into account.

19. Mr Lockhart-Mummery refers to a heading to a part of Mr Macleod's skeleton argument before the judge: "Did

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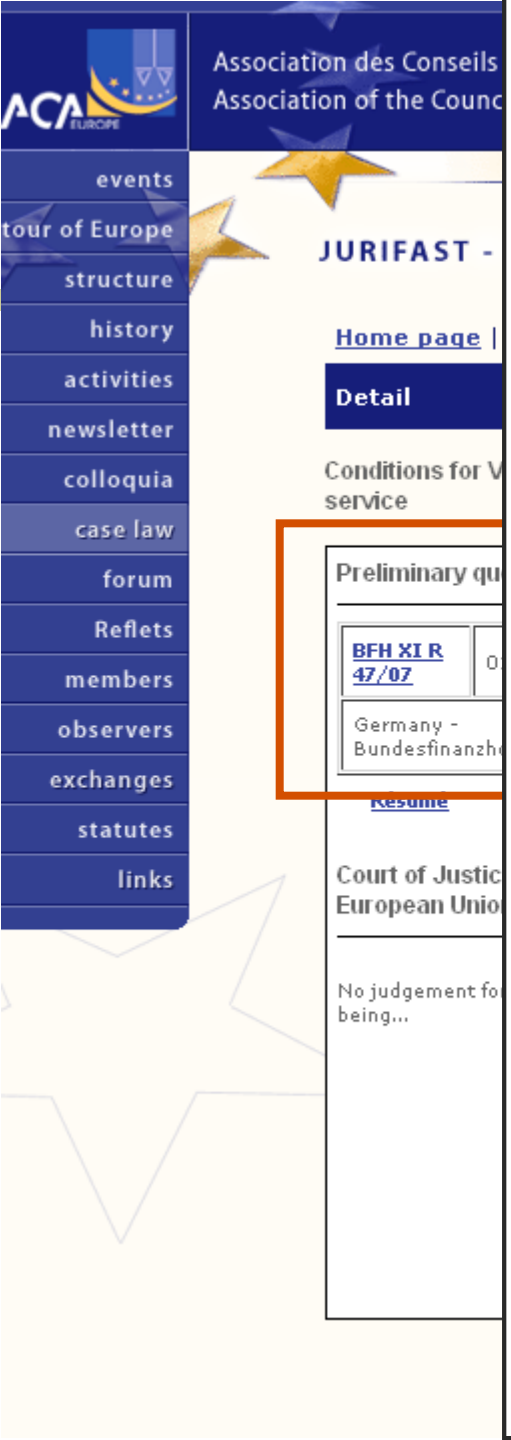
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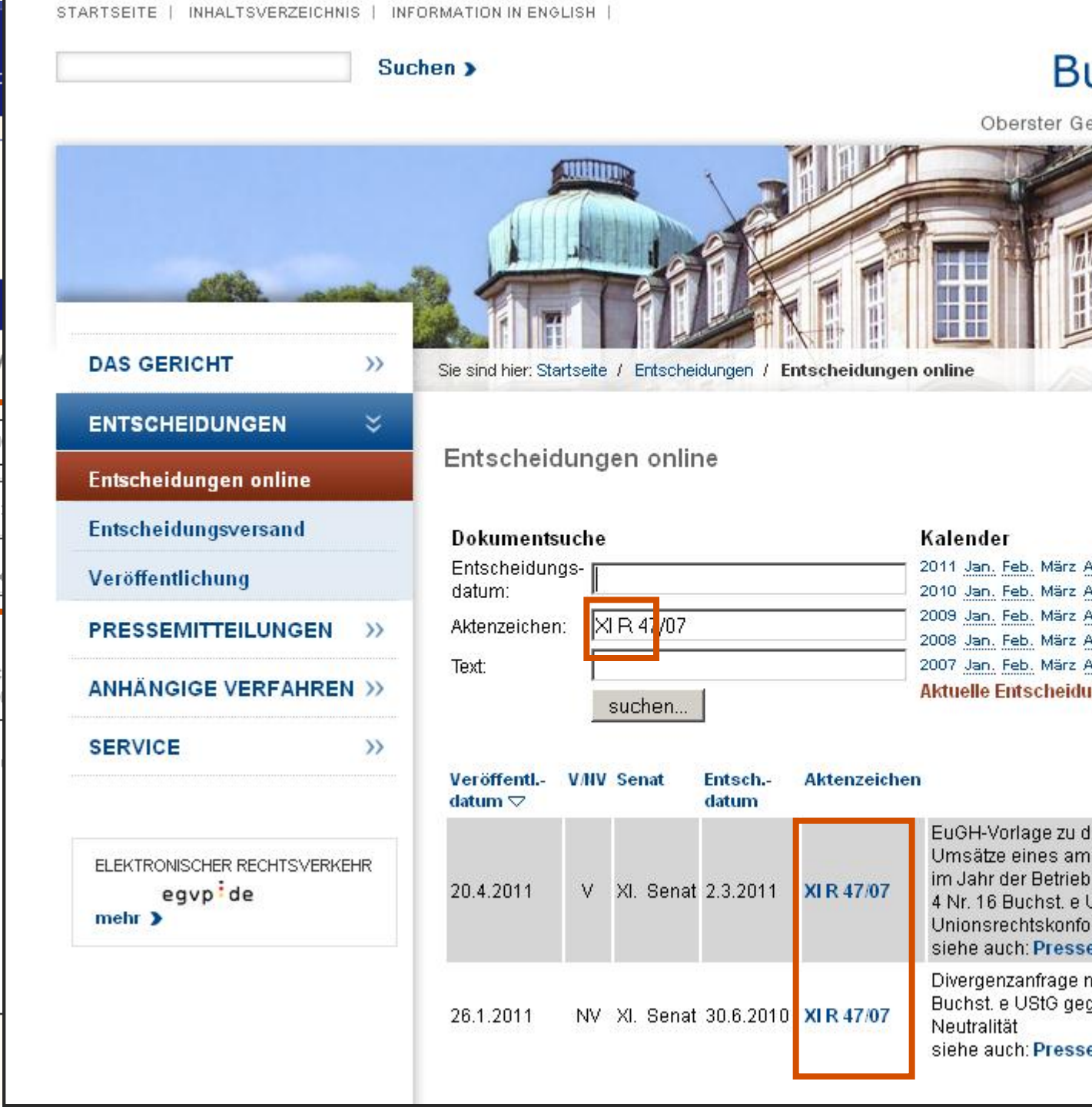
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EuGH-Vorlage zu d
Umsätze eines am
im Jahr der Betrieb
4 Nr. 16 Buchst. e U
Unionsrechtskonfo
siehe auch: Presse
26.1.2011 NV XI. Senat 30.6.2010 XI R 47/07
Divergenzanfrage n
Buchst. e UStG geg
Neutralität
siehe auch: Presse

KORKEIN HALLINTO-OIKEUS

Tietokanta sisältää korkeimman hallinto-oikeuden ratkaisuja vuodesta 1944 lähtien. Siihen sisältyy KHO:n vuosikirjassa julkaistut ratkaisut tiivistelminä vuoteen 2001 saakka ja sen jälkeen ratkaisuselosteina sekä tiivistelmiä muista kuin vuosikirjaan valituista ratkaisuista.

PIKAHAKU

Haku tekstistä esim. kotirauh* ja perusoik*. Lavea haku tai-sanalla, esim. ympäris* tai luonnon*. Numerohaku esim. KHO:2002:23.

Hae

Tarkennettu haku

Uusimmat ennakkopäätökset - KHO:n kotisivu

21.2.2011/393 KHO:2011:17

HELSINGIN YLIOPISTON APTEEKKI - SIVUAPTEEKIN SIIRTÄMINEN - SIVUAPTEEKKILUPA - ENNAKKORATKAISUPYYNTÖ UNIONIN TUOMIOISTUIMELLE

Diaarinumero: 1329/2/09 ja 1330/2/09
Antopäivä: 21.2.2011
Taltio: 393

Lääkelaitos (nykyisin Lääkealan turvallisuus- ja kehittämiskeskus) on hyväksynyt Helsingin yliopiston apteekin hakemuksen sivuapteekin perustamiseksi Vantaalle sen jälkeen, kun Helsingin yliopiston apteekki on lakkauttanut erään Helsingissä sijainneen sivuapteekkinsa. Tämän jälkeen Lääkelaitos on erillisellä päätöksellä hylännyt siellä samanaikaisesti vireillä olleen hakemuksen, jolla yksityinen apteekkari oli hakenut lupaa perustaa sivuapteekki samalle alueelle Vantaalla. Asiassa on korkeimmassa hallinto-oikeudessa eräiden yksityisten apteekkarien valituslupahakemuksesta arvioitavana, kohdeltiinko yksityistä apteekkaria syrjivästi sen vuoksi, että Helsingin yliopiston apteekin sivuapteekkien ja yksityisten apteekkarien sivuapteekkien perustamista koskevat eri lääkelain säännökset. Lisäksi asiassa on kysymys siitä, onko hakemukset käsiteltävä yhdessä hallintolain 25 §:n nojalla.

Korkein hallinto-oikeus päätti lykätä asian käsittelyä ja esittää unionin tuomioistuimelle seuraavan SEUT 267 artiklassa tarkoitetun ennakkoratkaisupyynnön.

1. Onko unionin oikeuden sijoittautumisvapautta koskevaa SEUT 49 artiklaa tulkittava niin, että se on esteenä Suomen lääkelain apteekkien toimilupajärjestelmää koskevien säännösten soveltamiselle siitä syystä, että Helsingin yliopiston apteekin sivuapteekkien perustamisedellytykset poikkeavat yksityisten apteekkien perustamisedellytyksistä seuraavasti:

a) Lääkealan turvallisuus- ja kehittämiskeskuksen lääkelain 52 §:n 1 momentin nojalla myöntämällä luvalla yksityinen sivuapteekki voidaan perustaa alueelle, jolla ei väestömäärän vähäisyyden vuoksi voida katsoa olevan riittäviä toimintaedellytyksiä itsenäiselle apteekille, mutta jolla lääkkeiden saatavuuden vuoksi tarvitaan apteekkiliikettä ja yksityinen apteekkari jokaista sivuapteekkia varten myönnettävän erillisen luvan perusteella voi pitää enintään kolmea sivuapteekkia. Helsingin yliopiston apteekin sivuapteekki taas voidaan perustaa Lääkealan turvallisuus- ja kehittämiskeskuksen kussakin tapauksessa lääkelain 52 §:n 3

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Title (name of the court, type of decision, ...)

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Date of the national decision	State or organisation in which the decision has been given	Language of the original decision
21/02/2011	Finland	Finnish

Korkein hallinto-oikeus, välipäätös 21/02/2011
Marja-Liisa Susisalo e.a.

NATIONAL REFERENCES

Names of parties : Susisalo, Marja-Liisa ; Tuomaala, Olli ; Ritala, Merja ; Lääkealan turvallisuus- ja kehittämiskeskus FIMEA ; Helsingin yliopiston apteekki

Provisions of national law in the original language and according to the national custom :
FI - Lääkelaki 38, 40-43, 52 et 54 §

National file number : 1329/2/09 ; 1330/2/09

EUROPEAN AND INTERNATIONAL REFERENCES

Treaties concerned by the decision :
Treaty on European Union

Provisions of European Union law :
Available only in French for the moment
CE - Art. 49 et 106, par. 2, TFUE

Provisions of European Union law in CELEX format :
12008E049 ; 12008E106-A02

Lacking a Unique Identifier

- How to cite?
  - European Court of Justice, 14-10-2004, C-299/02, European Court reports 2004, Page I-09761, Celex-nr 62002J0299, CASELEX:EU:2004:8, BAILII: [2004] EUECJ C-299/02, VLEX-17284540, NJ 2005, 421, a.s.o.
- How to search?
  - Trial and error
- How to hyperlink?
  - Nearly impossible to hyperlink to a decision, if not published at a specific location.

Lacking a Unique Identifier

- The case number
  - is not unique (within or between courts)
  - has no strict format
  - contains / ( ) [ ] - or other characters that also occur as search engine instructions
- The name of the court
  - can be abbreviated or translated
- The date of the judgment
  - has no strict format
- Other identifiers are often vendor and/or medium specific.

Metadata

- Data about data
- Filtering or classification of search results
- Giving information on documents
- Management information
- More sophisticated applications.

Lacking Uniform Metadata

- Every database / application its own set of metadata – comparable only by humans
- Dublin Core hardly applied
- If applied, not in a uniform way.



TOWARDS OPEN GOVERNMENT METADATA

September 2011

Action by the EU – 1

- Resolution 2008 by the European Parliament on the role of the national judge in the European judicial system
- e-Justice action plan
- EU Council working party on legal data processing – Task group on national case law: report in 2009
- Decision by the Council on the principles in December 2009.

Action by the EU – 2

- Elaboration by the task group, together with standardization initiatives, Court of Justice, judicial networks
- Detailed Council conclusions, December 2010
- Publication in Official Journal in 2011: http://eur-lex.europa.eu/LexUriServ/LexUriServ.do?uri=OJ:C:2011:127:0001:0007:EN:PDF

Council Conclusions

- ECLI syntax
- Metadata
- National co-ordinator
- ECLI website
- ECLI search interface.

ECLI website

- As part of the e-Justice website at https://e-justice.europa.eu
- European Commission responsible for maintenance.

ECLI search interface

- Part of the ECLI website
- Search by ECLI or by metadata …
- in all possible repositories
- To be materialized in the coming year.

Thank you